ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	120th Commission Meeting
DATE:	22 March, 2023
TIME:	02:00 PM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSIONS	DECISIONS
1	Regular HR update – HRS *The decision of the 91st HRC meeting held on 21 March 2023 was apprised.* *Further, Kelzang Dema's application to the Commission seeking financial support to undertake the final unit of her Masters programme online was reviewed. Noting limitations of the existing financial regulations to be able to extend any such support, the Commission discussed other options/possibilities including the Endowment Fund.* *To this, opinions shared on the Commission's past decision to disburse salary for security guards from the Endowment Fund was discussed. The Commission reminded that the decision during 101st Commission meeting was made given the urgency to recruit security personnel at Phuentsholing Regional Office, which is at a High-Risk Area. The payment for the security was arranged from the Endowment Fund as an urgent and imperative interim measure to ensure that the safety of the staff and the infrastructure is not compromised. Accordingly, a total of Nu. 96,822/- was spent from the Endowment Fund as payment for security guards for a period of about three months. This decision was largely in keeping with the principles of having such as Fund to respond effectively to work-related risk.*	**The Commission deferred action on Kelzang Dema's application to be discussed after adopting scheme & procedure for the Endowment Fund of Nu. 5.003 mn. The proposal for using the fund was decided to be discussed in the upcoming management meeting.**
2	Proposal on management of staff attendance –	**The Commission directed the ICTS**

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	HRS & ICT *The Commission noted inconsistencies in recording the staff attendance with majority using both 'Attendance system' and 'Biometric', while some relying only on the 'Biometric'. To this, upon Commission's directive, the ICTS explored possibilities of integrating the records of biometrics with the online attendance and leave system. However, it was reported that the integration cannot be undertaken immediately given the need to make the two technically compatible. Along this line, the ICTS apprised that the existing Leave System is currently being enhanced.*	**to integrate the records of biometric time with the attendance system to reduce duplication of efforts in recording staff attendance.** **However, until adoption of the integrated system for attendance, HRS was directed to remind all the staff to continue using both Biometrics and Attendance system to record time and attendance.**
3	Apprise on Agency Transition Plan for GovTech – ICT & PPD *In response to the GovTech's letter to centralize ICT infrastructure across the government, it was apprised that the ACC need to rationalize on the GovTech's initiative of transferring ICT systems and the people, given the confidential nature of its mandates.*	**The Commission directed ICTS to further discuss the ICT clustering and transition plan with Department/Divisions and prepare a detailed appraisal of the GovTech's initiative on the ACC's mandates.**
4	Follow-up on policy decision to reduce costs on tea/hospitality, stationary & vehicle – SS	**Directed SS to explore with the MoF if the broken-down vehicle can be replaced.** **Further, directed the SS to study and initiate innovative ideas of observing the 'Zero Waste Hour' including responsible waste reduction besides the regular cleaning campaign in keeping with the principles of 'reduce, reuse and recycle'.**
5	Present status of cases related to RAA referrals - DoPS *Of the total RAA referrals (44), received between 2010 and 2023, 23 were closed and 21 were pending with the ACC, either under investigation (11) or yet to be assigned (10).*	**Noted.**
6	Discuss on DPP, MoF's proposal to amend Section 27 of the Debarment Rules - LD *The LD recommended the amendment of the proposed Section of Debarment Rules 2019. Further, LD submitted that the Debarment Rules in general requires amendment, including the*	**The Commission directed LD to note and include the proposed amendment in Section 27 during the revision of the Debarment Rules 2019.**

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	composition of Committee and role of the Secretariat.	
7	Present Restorative Justice on IVR – DoPS & LD *The proposal included application of restorative justice for minor administrative offenses while it may not be appropriate to apply for the criminal and major-administrative offenses.*	**The Commission directed LD & DoPS to bring further clarity on applicability of restorative justice for repetitive minor administrative offenses, specifically revisiting the cooling period in view of variations in the sanctions and its period. Application of restorative justice must look in to creating deterrence.**
8	Apprise on proposal of IAACA's Secretariat, ICAC Hongkong, to host two days conference for ACAs of South Asia - PPD *While Bhutan is not a formal member of the International Association of Anti-Corruption Authorities (IAACA), the ACC has benefited from several capacity building programs in the past. The Commission discussed that hosting the conference in Bhutan will only help in sharing and learning from the regional experiences but also help the local economy. While majority of the costs related to the program will be borne by the Secretariat of IAACA and the participating countries, Bhutan will have to bear some local logistical costs.*	**The Commission decided to seek Ministry of Foreign Affairs and External Trade's advice and political clearance to hosts the proposed conference.**
9	Any others: - *UNODC's invitation for the 32nd session of the Commission on Crime Prevention and Criminal Justice (22 – 26 May 2023) – PPD*	**Decided to attend the conference virtually with one participating credential/registration. Participants for the session to be determined based on the details/content of the program.**
	- *Cabinet Secretariat's invitation for cluster programme lab to validate and and consolidate objectives, Programmes, KPIs, and projects for the 13th FYP – PPD*	**Commissioner A Karma Rinzin to represent the ACC, accompanied by Kinley Wangmo of PPD.**
	- *Plan 10th QSM - PPD*	**Decided to host the 10th QSM on 14th April, 2022 from Trashigang RO, led by Commissioner Jamtsho. Further, Commissioner A Karma Rinzin to join the Phuntsholing RO team.** **The Commission directed PPD to prepare an agenda that brings light-hearted team engagement with involvement of mid-level officials.**

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Commissioner	**Commissioner**	**Chairperson**

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